MY IRAC AND DISCUSSION Introduction:

The issue is determining the difference between the implied warranty of merchantability and fitness for a particular purpose. An implied warranty of merchantability is when the seller of goods meets the standards and is suitable to be sold. Under §2-314 in the implied warranty of merchantability, “the goods shall be merchantable is implied in a contract for their sale if the seller is a merchant concerning goods of that kind.” (§ 2-314 (1), (2)(a)-(f), (3) UCC). This implies that goods are acceptable based on the merchant or seller. In addition, it also states that the goods need to be a good fit and also, “pass without objection, are at least fair average quality goods, within the permitted agreements, and conform to the affirmations made on the container.” (§ 2-314 (1), (2)(a)-(f), (3) UCC). Clean's EPI cleaning products must pass the standards of not being defective, efficient for cleaning, and have warning labels for any possible risks. Without these implemented, Clean's cleaning products would not be safe for a buyer and breach this warranty. An implied warranty of fitness implies that the seller is knowledgeable of goods as the buyer relies on the seller’s recommendation of a specific product for a customer’s personal needs and the item's intended use. Under §2-314 in the implied warranty of fitness for a particular purpose, “the seller at the time of contracting has reason to know any particular purpose for which the goods are required, and that the buyer is relying on the seller’s skill or judgment to select or furnish suitable goods, there is unless excluded or modified under the next section and implied warranty that the foods shall be fit for such purpose.” (§2-314 UCC). If the buyer would like Clean's advice for the EPI cleaning products to be used on different materials to prevent damages, then Clean would have to provide the recommendation as the seller and the products meet the standards. For instance, if the buyer would like to utilize the EPI cleaning product on granite or marble, the chemicals must not damage the material nor be a health hazard to the person if touched. Therefore, implied warranty of merchantability is when the goods meet the standards and are suitable to be sold to the buyer, while fitness for a particular purpose is when goods are based on the seller's knowledge and recommendations to the buyer.

The issue is whether Clean could be sued for breach of implied warranty of merchantability for using EPI cleaning products to clean Clean's clients' commercial property. As previously mentioned, an implied warranty of merchantability is when the seller of goods meets the standards and is suitable to be sold. (§ 2-314 (1), (2)(a)-(f), (3) UCC). This is important because it correlates to Clean utilizing the EPI products to clean the client properties. If the products are defective to cause ineffective cleaning, harm, damages, and no warning labels, Clean may be sued for breaching this warranty. If the product does not meet the standards including a warning label for the possible risks, the product breaches the warranty too. A breach of the implied warranty of merchantability is when goods are defective, cause harm, damages, and improper warning labels. Clean could be sued if the EPI cleaning products damage the commercial property due to the defective products. For instance, if the cleaning product was only for a specific type of material, then utilizing the cleaning products for other ones may cause damage. And without a warning label of the harm it may do, this beaches the warranty. Clean's EPI cleaning products must meet the standards of, "pass without objection, are at least fair average quality goods, within the permitted agreements, and conform to the affirmations made on the container.” (§ 2-314 (1), (2)(a)-(f), (3) UCC). If these products have been proven to cause harm, damage surfaces, and inefficient cleaning, these products should not meet the buyers’ reasonable expectations. In addition, Clean could also be sued for product liability if the business wants to

sell the cleaning products from EPI. (§ 2-314 (1), (2)(a)-(f), (3) UCC)). Product liability arises when a product fails to result in loss or injury (Andrino, R., 2023; Saylor Foundation, 2012). If Clean sells the product, it breaches product liability as it is a defective design, damaged materials, and improper warning labels for its intended usage. Moreover, under §2-313 in express warranties, it implies that the seller can express warranties of bargains through a contract with selling goods, description of goods, model of goods, and regarding the limitations of creating an express warranty (§ 2-313 (1)(a)-(c), (2) UCC). And under § 2-316 in exclusion or modification of warranties, it expands on the limitations by creating an express warranty, modifying both implied warranty of merchantability and warranty of fitness, and limitations to breaching the warranties (§ 2-316 (1), (2), (3)(a)-(c), (4) UCC). §2-313 and §2-316 cover how the implied warranties have exceptions for excluding, modifying, and breaching those warranties. These two states are the basis for those warranties as Clean's actions should align with the intended purpose of the EPI products to avoid breaching warranties. §2-313 implies creating those warranties and §2-316 covers modifying implied warranty of merchantability or implied warranty of fitness for a particular purpose. §2-316 is best utilized to help analyze a breach, exclusion, and modification for a particular scenario regarding the merchant's goods when selling them to the buyer. Moreover, Clean's liability depends on whether Clean is utilizing the product, selling it, proper warning labels, proper product chemicals, and if it meets the standards. If Clean's EPI product damages surfaces, has improper risk labels, does not pass the standards, and provides a bad recommendation to the buyer, Clean breaches these warranties. Clean is aware and responsible for providing the buyer with an efficient product, proper warning labels, and meeting the standards. Therefore, Clean could be sued by liability warranty of merchantability and possibly product liability if Clean sells a defective product that causes harm, ineffective cleaning, damages, improper warning labels, and a bad recommendation. But Clean may not be sued if the EPI product during the clean services does not breach those standards, is safe to use, and is a good recommendation by Clean.

Conclusion:

In conclusion, the difference between an implied warranty of merchantability and the implied warranty of fitness for a particular purpose is that it refers to agreements that all goods meeting the standards are implied suitable for sale with the intended purpose by the merchant and the other is where a seller is knowledgeable of the goods with recommendations to clients to fulfill his or her specific needs or wishes. Based on the facts, the outcome of whether Clean could be sued depends on whether Clean's product is utilized, sold, meets the standards, has proper labeling, and has no harm. If Clean utilizes EPI cleaning products that do not meet the standards from both warranties, Clean may be sued due to the harm, damages, improper labeling, and standards. For instance, one example would be the EPI cleaning product may cause damage to wood when there are no warning labels that it should not be used for wood materials. When Clean offers the product to the buyer, Clean is aware that the product already meets those required standards. That would mean if Clean has a bad product, it would be Clean's responsibility to sell those defective products. Moreover, if Clean tries to sell his defective product from EPI, he could also be sued for product liability and implied warranty of merchantability. Therefore, Clean could be sued by the implied warranty of merchantability and product liability. However, Clean may not be sued if the EPI cleaning products do not breach

those standards (harm, damages, etc). Clean is responsible for the product, is aware of the proper labels, and meeting those standards.

References

§ 2-313 (1)(a)-(c), (2) UCC: Express Warranties by Affirmation, Promise, Description, Sample. (Legal Information Institute, Cornell Law) https://www.law.cornell.edu/ucc/2/2-313

§ 2-314 (1), (2)(a)-(f), (3) UCC: Implied Warranty: Merchantability; Usage of Trade. (Legal Information Institute, Cornell Law) https://www.law.cornell.edu/ucc/2/2-314

§ 2-315 UCC: Implied Warranty: Fitness for Particular Purpose. (Legal Information Institute, Cornell Law) https://www.law.cornell.edu/ucc/2/2-315

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Hello,

Your cogent and thorough analysis of the warranties and if Clean could be sued for breaching the implied warranty of merchantability are well explained. Both implied warranty of merchantability and implied warranty of fitness are different even though both are correlated to one another. I concur with you that implied warranty of merchantability is when the goods are acceptable based on the merchant or seller, while fitness for a particular purpose is when goods are suitable based on the seller's knowledge and recommendations to the buyer. You make a valid point that the seller has reason to know the specific reason of why the buyer is purchasing products which is key to comprehending implied warranty of fitness. (§ 2-314 (1), (2)(a)-(f), (3) UCC and §2-314 UCC). These quotes and explanations are similar to your statements that allowed me to see the differences between these two warranties and it's significance when applying it to Clean's scenario. I can definitely see how Clean is a the merchant or seller and the citizens are the buyers. This would place Clean being responsible for the product to be either fair average or not harmful when utilizing it for the cleaning services.

Moreover, upon applying it to the scenario of whether Clean could be sued for breaching implied warranty of merchantability was fun to decipher and investigate. I concur with you that Clean could be sued for a breaching the implied warranty of merchantability is when used or sold goods are both defective and harmful. This is because the EPI cleaning products may damage the property or is harmful to the citizens creating potential health hazards. To showcase how these products are not defective and harmful it must "pass without objection, are at least fair average quality goods, within the permitted agreements, and conform to the affirmations made on the container." (§ 2-314 (1), (2)(a)-(f), (3) UCC). You make a valid point that since these products in general are not within the scope and have been proven to cause harm, these products does not meet the buyers' reasonable expectations.

Through my perspective, I also believe that Clean could also be sued for product liability if the business wants to sell the cleaning products from EPI. (§ 2-314 (1), (2)(a)-(f), (3) UCC)). Product liability arises when a product fails to result in loss or injury (Andrino, R., 2023 and Saylor Foundation, 2012). If Clean sells the product, it breaches product liability as it is a defective design, and it harms other citizens that utilize it. Under § 2-316 in exclusion or modification of warranties, it expands on the limitations by creating an express warranty, modifying both implied warranty of merchantability and warranty of fitness, and limitations to breaching the warranties (§ 2-316 (1), (2), (3)(a)-(c), (4) UCC). §2-316 cover more on how the implied warranties have exceptions for excluding, modifying, and breaching those warranties. Clean's actions should align with the intended purpose of the EPI products to avoid breaching warranties. §2-316 is best utilized to help analyze when there is a breach, excluding, and modified for a particular scenario regarding the merchant's goods when selling it to the buyer. Moreover, Clean's liability depends on whether Clean is utilizing the product, selling it, and if it meets the standards. Therefore, I agree with you that Clean could be sued by warranty of merchantability and this product liability as well if he sells the defective product that causes harm or the cleaning is ineffective that causes damages. But Clean may not be sued if utilizing the product during the clean services does not satisfy or breach through those standards.

Overall, thank you for your input as it allowed me to expand, clarify, and gather more insight onto implied warranties based on Clean's scenario. Well done and great job.

References

§ 2-313 (1)(a)-(c), (2) UCC: Express Warranties by Affirmation, Promise, Description, Sample. (Legal Information Institute, Cornell Law) https://www.law.cornell.edu/ucc/2/2-313

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§ 2-315 UCC: Implied Warranty: Fitness for Particular Purpose. (Legal Information Institute, Cornell Law) https://www.law.cornell.edu/ucc/2/2-315

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FINAL DISCUSSION REPORT FORMAT EXMAPLE AND DMEOSNTRATION

TO: Winnie James, Ralph Anders

FROM: Victoria Lee

DATE: 6/29/2024

RE: EPI and Clean Product Liability

A. Discuss what a plaintiff would need to show using the negligence theory of product liability against Clean and compare this to what a plaintiff would need to show in a strict product liability claim against Clean for reselling EPI cleaning products.

The issue is whether a plaintiff would utilize negligence theory of product liability against Clean versus what a plaintiff would utilize in a strict product liability claim against Clean for reselling EPI cleaning products. Products liability describes a type of claim—for injury caused by a defective product—and it is separated into three types: warranty, negligence, and strict liability (Saylor Foundation, 2012). The two last types are tort theories while the first one is a contract. For product liability through negligence, the plaintiff must prove fault. To be considered as a negligence, it must follow all four elements that the defendant had a duty of care, the care was breached, the breach resulted in and connected to the plaintiff's injury, and the plaintiff suffered actual damage or loss (Andrino, R., 2023 and Saylor Foundation, 2012). When utilizing the negligence theory, it focuses on the defendant's conduct and whether they breached a duty of care. The injured party must prove Clean's negligence through all four elements or else the defendant Clean prevails. The plaintiff must show that Clean owed a duty of care to consumers when reselling EPI cleaning products. And since Clean is reselling the defective product, it demonstrates that Clean breached this duty by failing to prevent the harm associated

with the defective product. When making a connection between Clean's breach of duty and the resulting injury must be with the defective product and the plaintiff that suffered damages or harm due to the defective product. Moreover, this centers on the defendant's actions and whether they acted reasonably or negligently. For a product liability through strict liability, the plaintiff does not need to prove fault, but the injuries occurred as a result of using the defective product. To be considered as strict liability, it must follows that the product being sold is "defective which is dangerous leading to physical harm, the seller is engaged in the business of selling such a product, product is dangerous due to its defectiveness, a person incurs physical harm from the product, the defective product caused the injury, the goods are not changed from the time the product was sold to the time the injury was sustained, and this includes even if the defendant uses all possible cares to avoid the injury." (Saylor Foundation, 2012 and Andrino, R., 2023). Through strict product liability, it focuses on Clean's conduct to the inherent defects in the product itself. With this law, it allows people to pursue claims without showing negligence or intentional wronging by Clean. The plaintiff must show that the product was defective during the cleaning services and that the product caused harm. It must also show that the product was defective at the time of sale and time, was not changed or modified at the time of sale or injuries incurred. Since Clean's product has a defect in the product, then the plaintiff must prove that this defective product was the cause of the injuries and poses a future health hazard to others. However, there are limitations to this law. A plaintiff cannot apply this when assuming risk, product misuse and comparative negligence, common dangers, and knowledgeable use-user defense (Andrino, R., 2023). Clean could be sued for product liability if the business wants to sell the cleaning products from EPI. Product liability arises when a product fails to result in a defective product or injury done to a person (Andrino, R., 2023, Saylor Foundation, 2012). If he sells the product, it breaches product liability as it is a defective design, and it harms other citizens who utilize it. Therefore, these are what the plaintiff would need to show to file a product liability against Clean for the harm it caused, utilizing the defect product in the cleaning services, and reselling the defective product.

B. Recommend specific actions that Clean could take to reduce its liabilities under negligence and strict product liability law for reselling EPI cleaning products.

The negligence theory states that the plaintiff must prove fault through all four elements that the defendant had a duty of care, the care was breached, the breach resulted in and connected to the plaintiff's injury, and the plaintiff suffered actual damage or loss (Andrino, R., 2023 and Saylor Foundation, 2012). As for strict liability, it states that the plaintiff does not need to prove fault, but the injuries occurred as a result of using the defective product including meeting the required standards (Andrino, R., 2023 and Saylor Foundation, 2012). I recommend Clean to build a better foundation of warnings and instruction labels on the product, cross-train employees about

handling these products to prevent misuse of harm, implement quality control to prevent a defective product from reaching consumers, and document records (Andrino, R., 2023 and Saylor Foundation, 2012). Clean should ensure EPI products have warnings about potential risks displayed on packaging. Clean should also cross-train employees about safe handling, storage, and usage of EPI products. In addition, Clean should implement quality control to detect and prevent any defective product from going into sale and document all records of the testing and safety measures through the standards. Not only should Clean do all of these mitigation strategies, Clean should also implement better accountability and product knowledge to lower the liability against Clean. Clean can do this by clearly showing all risks associated with the EPI products to customers. This allows Clean to have the liability reduced if the customers are aware of the hazards and risks associated with this product. Moreover, Clean should also include accurate product labels of information such as risks and a traceable supply chain to demonstrate safety standards. If Clean wants to avoid future defective products, Clean should conduct research and before using a reselling it and have the product be evaluated before selling it. Therefore, these are the recommendations for Clean to reduce its liabilities under these laws, but Clean should consult with a legal expert if there are other laws that may also lower the liability against Clean.

References

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